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Assembly committee hears 'right to housing' amendment

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On Wednesday, the Assembly Committee on Housing and Community Development heard the story of Peggy Pleasant, a formerly homeless Los Angeles woman who spent time living in the city's infamous Skid Row before finally ending up in affordable housing.

"When you're homeless, you lose housing, you lose family members, you lose your hope. And when you lose your hope, that makes you an inadequate person," Pleasant said.

Pleasant was testifying in support of ACA 10, a proposed constitutional amendment to guarantee all Californians the right to housing.

As the author, Assemblyman Matt Haney, D-San Francisco, said during testimony Wednesday, more than 100 human rights groups, including ACLU California Action and ACCE Action, a statewide pro-housing organization, have signed on in support of the proposed amendment.

"Recognizing a right to housing is essential to meaningfully address the housing crisis. Such a right is a guarantee that Californians' housing security is protected from the whims and uncertainties of politics, the charitable sector, or the private market," according to a statement from the ACLU.

California's constitution currently enshrines several rights, including the right to own property and the right to get an abortion (as of 2022).

ACA 10 would amend the constitution to "declare that the state recognizes the fundamental human right to adequate housing for everyone in California. The measure would make it the shared obligation of state and local jurisdictions to respect, protect, and fulfill this right, by all appropriate means," according to the legislative counsel's digest.

The amendment passed the committee 6-2 (with Republicans voting no), but not before Assemblyman Jesse Gabriel, D-Woodland Hills, expressed concern about the "major, major heartburn" that the amendment was giving him.

"Because of the language of this (amendment), I see a basis for anyone in California to challenge any law..." he said

Gabriel said judges could use the amendment to justify cutting Prop 98 education funding, for example, in order to make more money available for housing. The amendment could also be used to gut the California Environmental Quality Act or kneecap the trade unions for the same reason, he said.

Haney called that argument a "straw man" - a rhetorical term for an intentionally misrepresented statement - similar to the slippery slope scenario invoked against Proposition 1 - 2022's constitutional amendment to enshrine the right to abortion.

Assemblywoman Buffy Wicks, D-Oakland, who chairs the committee, said she supports the idea behind the amendment but encouraged Haney to work with lawmakers who had concerns.

In order to go before California voters, ACA 10 must pass both houses of the California Legislature with a two-thirds vote.

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